

SENATE BILL 1297

By Johnson

AN ACT to amend Tennessee Code Annotated, Section 2-7-112 and Title 55, Chapter 50, relative to licenses.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Section 2-7-112(c)(1), is amended by inserting the language "physical" immediately preceding the language "Tennessee driver license".

SECTION 2. Tennessee Code Annotated, Section 2-7-112(c)(3), is amended by inserting the language "physical," immediately after the language "A".

SECTION 3. Tennessee Code Annotated, Section 55-50-306, is amended by deleting "electronic driver license system" wherever it appears in subsections (a), (b), (c), and (e) and substituting instead "digital driver license system"; by deleting "electronic format" wherever it appears in subsection (a) and substituting instead "digital format"; by deleting "an electronic format" wherever it appears in subsection (e) and substituting instead "a digital format"; and by deleting "an electronic image" and "electronic images" wherever they appear in subsection (a) and substituting instead "a digital image" and "digital images".

SECTION 4. Tennessee Code Annotated, Section 55-50-304, is amended by adding the following subdivision:

() Any person eighteen (18) years of age or older who is operating a non-commercial vehicle and who is accompanied by a department of safety employee while engaged in an actual demonstration of their ability to exercise ordinary and reasonable control in the operation of a motor vehicle pursuant to § 55-50-322(a)(1)(A).

SECTION 5. Tennessee Code Annotated, Section 55-50-306(d), is amended by deleting the subsection and substituting instead:

(d) Neither the department nor any entity contracting with the department shall charge a fee to participate in the digital driver license system.

SECTION 6. Tennessee Code Annotated, Section 55-50-306(e), is amended by deleting the first sentence and substituting instead:

In lieu of a physical driver license, a person who participates in the system may present or submit evidence of possession of a valid driver license in a digital format, which must be accepted as such evidence for identification and other purposes, including upon the request of a law enforcement officer, a seller of alcoholic beverages, or any other person; except, that to verify the person's identification for the purpose of voting, the person shall not present or submit evidence of possession of a valid driver license in a digital format and a digital driver license must not be accepted as such evidence.

SECTION 7. Tennessee Code Annotated, Section 55-50-306, is amended by deleting subsection (f) and substituting instead:

(f)

(1) Data obtained from the use of a digital driver license must not be retained for longer than necessary to confirm the information provided is accurate; provided, however, that data must not be retained for longer than three (3) calendar days.

(2) Data obtained from the use of a digital driver license must not be sold or otherwise provided to any entity other than a law enforcement agency through the course of the agency's duties, a governmental entity that is entitled to the information under state law, or pursuant to a subpoena issued by a court.

SECTION 8. Tennessee Code Annotated, Section 55-50-306, is amended by adding the following new subsections:

(g)

(1) As used in this subsection (g):

(A) "Biometric identifier" means a retina or iris scan, fingerprint, voiceprint, or record of hand or face geometry; and

(B) "Geolocation data" means internet protocol addresses or other information that describes the location of a cellular telephone or other type of portable electronic device, computer, computer system, or computer network from which a person accesses the digital driver license system.

(2) The department may only collect a biometric identifier in the form of face geometry for the exclusive purpose of comparing face geometry to a driver license photo already on file to confirm the person seeking a digital driver license is the same person who holds the physical driver license. The department must not collect any other biometric identifier.

(3) An entity contracting with the department to provide a mobile software application or other method for utilizing a digital driver license system shall not capture a biometric identifier of a person for purposes of the digital driver license system unless the entity:

(A) Informs the person each time before capturing the biometric identifier in a separate and distinct manner from any terms and conditions or other requests for consent; and

(B) Receives the person's clear and specific consent to capture the biometric identifier each time.

(4) If the department or entity described in this subsection (g) possesses a biometric identifier of a person that is captured pursuant to subdivisions (g)(2) or (g)(3), then the department or entity:

(A) Shall not sell or otherwise provide the biometric identifier to any entity other than a law enforcement agency through the course of the agency's duties, a governmental entity that is entitled to the biometric identifier under state law, or pursuant to a subpoena issued by a court;

(B) Shall store, transmit, and protect from disclosure the biometric identifier using reasonable care and in a manner that is the same as or more protective than the manner in which the department or entity stores, transmits, and protects personally identifiable information the department or entity possesses; and

(C) Shall destroy the biometric identifier within three (3) calendar days.

(5) Neither the department nor an entity contracting with the department to provide a mobile software application or other method for utilizing a digital driver license system shall capture or retain geolocation data of a person for purposes of the digital driver license system.

(h) Any data provided by a person to any entity contracting with the department to provide a mobile software application or other method for utilizing a digital driver license system is personally identifiable information of the person and must not be sold, redisclosed, or otherwise utilized by the entity, except as otherwise provided in subdivision (f)(2).

(i)

(1) A person participating in the digital driver license system is not required to use a digital driver license in lieu of a physical driver license for identification or other purposes.

(2) A private or public entity shall not require, or provide preferential service based on, a person's use of a digital driver license in lieu of a physical driver license.

(j)

(1) The department shall disable, suspend, or terminate a person's participation in the digital driver license system if:

(A) The physical driver license issued to the participant has been cancelled, revoked, or suspended as provided in this chapter; or

(B) The participant reports that the participant's electronic device has been lost or stolen.

(2) The digital driver license must be disabled at the time of suspension, cancellation, or revocation of the physical driver license, and must be removed from the device within twenty (20) days if the physical driver license has not been restored.

(k) For purposes of this section, "driver license" includes a photo identification license issued under § 55-50-336.

SECTION 9. Tennessee Code Annotated, Section 55-50-102(22)(D), is amended by deleting the subdivision and substituting instead:

(D) CLASS D. This license shall be issued and valid for the operation of any vehicle, including autocycles, that does not meet the definition of a commercial motor vehicle, except vehicles in Classes A, B, C, or M or vehicles that require a special endorsement unless the proper endorsement appears on the license;

SECTION 10. This act takes effect upon becoming a law, the public welfare requiring it.